

Diary No. 291 Date 17/4/25

GOVERNMENT OF INDIA
भारत सरकार
OFFICE OF THE COMMISSIONER :: CENTRAL GOODS & SERVICES TAX
आयुक्तकार्यालय : केन्द्रीय वस्तु एवं सेवा कर
Sub Anemg HOWRAH COMMISSIONERATE
हावड़ा आयुक्तालय
M.S. BUILDING, 15/1, STRAND ROAD, KOLKATA- 700001
एम.एस. बिल्डिंग, 15/1, स्ट्रैंड रोड, कोलकाता 700001 -
दूरभाषण/ PHONE NO. 033-22435557, फैक्स/ FAX '033-22308886/22315041
ई-मेल/ E-MAIL- cgsthwhae@gmail.com

48/4.
DG (CEIB)
Diary No. 4312968
Date 09/04/2025
JS (C)/ADG (EI-I)/ADG (Coord EI-II&A)
JD (EIAD)
M

File No.: GEXCOM/AE/INV/GST/1578/2025-AE-O/o COMM-R-CGST-HOWR.

Dated: 27.03.2025 → Date of offer

Case No. INCIDENT REPORT: No. 99/2024-25

entity details

Name and GSTIN	M/s Sunpack Industries [GSTIN:19AKKPS3585L1Z8]
Commodity/Service supplied with HSN	Manufacturer of films, foils, sheets of plastics for the conveyance & packing of goods under HSN 3920, 3921 & 3923.
Nature of Evasion	Inadmissible ITC & Non-reversal of ITC, against free samples of goods supplied to the customers
Amount of Evasion detected :	1. Non-reversal of ITC, Rs 13826, against free samples of goods supplied to the customers, for the period 2023-24 & Apr'24 to Jan'25 2. Inadmissible ITC of Rs 33,122/- for the period 2023-24 & April'24 to Jan'25.
Amount Recovered:	• Payment of Non-reversed ITC availed against free samples of goods supplied to the customers, of Rs 13826/- (CGST+SGST) along with interest of Rs 2558/- & penalty of Rs 2,074/- for the period 2023-24 & Apr'24 to Jan'25. → Amount involved. • Payment of inadmissible ITC of Rs 33,122/- (CGST-15182/-+SGST-15182/-+IGST-2758/-) along with interest of Rs 5369/- & penalty of Rs 4967/- for the period 2023-24 & April'24 to Jan'25.
Source of Intelligence	Specific Intelligence was gathered by the officers of the Anti Evasion Unit under Howrah CGST & CX Commissionerate.
Date of Visit/Search	27.02.2025

1. Specific Intelligence was gathered by the officers of the Anti Evasion Unit Under Howrah CGST & CX Commissionerate that RTP is discharging their GST liability mostly from ITC ledger.
2. During the course of inspection at the registered place of business, it was detected that the above mentioned RTP (i) did not reversed ITC availed against free samples of goods supplied to the customers & (ii) availed inadmissible ITC. Accordingly, the registered Place of business was visited and Summons under Section 70 of CGST Act, 2017 was issued and voluntary written statement was recorded. In the statement, the RTP has accepted the tax liability and made the payment of tax ascertained along with interest and penalty, as applicable.

No further inspection is pending in connection with the above issue.

This is issued with the approval of the Competent authority.

Digitally signed by
Shashi Bhushan
Date: 27-03-2025
16:53:05

Shashi Bhushan DEPUTY
COMMISSIONER

Copy forwarded for kind information to:

ADG (EI)
18 APR 2025
Diary No. 10708

DD (Rishu)
AD (Solomon)
for Compiler
Gur

IR NO - 07-13 (#)

dt. 01.04.25

1. The Principal Chief Commissioner, CGST & CX Kolkata Zone.
2. The Principal Comm,,issioner/Commissioner, CGST & CX, Kolkata – North, South, Haldia, Bolpur/ Siliguri Commissionerate.
- ✓ 3. Central Economic intelligence Bureau, Janpath Bhawan, "B" Wingh, 6th Floor, New Delhi-110001.

Shashi Bhushan
DEPUTY COMMISSIONER